

THOMAS, J., concurring in judgment

“‘by a jury’ is generally understood to mean” a body that “must *unanimously* concur in the guilt of the accused before a conviction can be had.” G. Paschal, *The Constitution of the United States* 210 (1876) (capitalization omitted). And a volume on the jury trial was in agreement. See J. Proffatt, *Trial by Jury* § 77, p. 112 (1877).

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Based on this evidence, the Court’s prior interpretation of the Sixth Amendment’s guarantee is not demonstrably erroneous. It is within the realm of permissible interpretations to say that “trial . . . by . . . jury” in that Amendment includes a protection against nonunanimous felony guilty verdicts.

II

The remaining question is whether that right is protected against the States. In my view, the Privileges or Immunities Clause provides this protection. I do not adhere to this Court’s decisions applying due process incorporation, including *Apodaca* and—it seems—the Court’s opinion in this case.

The Privileges or Immunities Clause provides that “[n]o State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States.” Amdt. 14, § 1. At the time of the Fourteenth Amendment’s ratification, “the terms ‘privileges’ and ‘immunities’ had an established meaning as synonyms for ‘rights.’” *McDonald v. Chicago*, 561 U. S. 742, 813 (2010) (THOMAS, J., concurring in part and concurring in judgment). “[T]he ratifying public understood the Privileges or Immunities Clause to protect constitutionally enumerated rights” against abridgment by the States. *Id.*, at 837. The Sixth Amendment right to a trial by jury is certainly a constitutionally enumerated right. See *Maxwell v. Dow*, 176 U. S. 581, 606–608 (1900) (Harlan, J., dissenting).

The Court, however, has made the Due Process Clause serve the function that the Privileges or Immunities Clause